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**JUDGMENT SHEET**  
**IN THE LAHORE HIGH COURT, LAHORE**  
**JUDICIAL DEPARTMENT**

**Civil Revision No.9868 of 2026**

**Nasir Mahmood**  
**Versus**  
**Zubair Ahmad**

**J U D G M E N T**

Date of hearing: 05.05.2026.  
Petitioner by: Mr. Muhammad Javaid Iqbal Qureshi,  
Advocate.  
Respondent *ex parte*.

**MUHAMMAD SAJID MEHMOOD SETHI, J.-** Through this Civil Revision under Section 115 of the Code of Civil Procedure, 1908 (“**the Code**”), the petitioner calls in question the legality and propriety of the order dated 15.09.2025 passed by the learned Civil Judge, Wazirabad, whereby his suit for specific performance and permanent injunction was dismissed for non-deposit of the balance sale consideration amounting to Rs.9,97,978/-, and the judgment dated 19.12.2025 passed by the learned Additional District Judge, Wazirabad, whereby the appeal preferred thereagainst was dismissed.

2. Briefly stated, the petitioner instituted a suit on 29.05.2025 seeking specific performance of a written agreement to sell along with consequential relief of permanent injunction. The suit was admitted for regular hearing and interim injunctive relief was granted subject to deposit of court fee of Rs.15,000/- and the remaining sale consideration of Rs.9,97,978/-. The respondent entered appearance and filed written statement. Despite opportunities granted on 04.06.2025 and 17.07.2025, the petitioner failed to deposit the requisite amount. However, on 04.09.2025, instead of proceeding coercively, the learned Trial Court referred the matter to mediation under Order IX-A of the Code, thereby consciously shifting the proceedings from adversarial adjudication to consensual dispute resolution.

On 15.09.2025, the matter was taken up for mediation. No meaningful progress was made and proceedings under Orders X, XI and XII of the Code were dropped. Thereafter, without restoring the matter to its regular track or affording any further opportunity regarding compliance of the deposit order, the learned Trial Court dismissed the suit for non-deposit of the remaining sale consideration. The petitioner's appeal was dismissed vide judgment dated 19.12.2025, giving rise to the present revision petition.

3. Learned counsel for the petitioner contends that both the impugned order and judgment suffer from material procedural illegality. He submits that 15.09.2025 was fixed exclusively for mediation proceedings and not for adjudication or dismissal of the suit. According to him, once the learned Trial Court had consciously diverted the matter towards Alternative Dispute Resolution on 04.09.2025, it was incumbent upon the Court, upon failure of mediation, to restore the proceedings to their regular course and afford a fresh opportunity for compliance before imposing any penal consequence. He further contends that dismissal of the suit without notice or hearing on the issue of deposit violated the settled principle of audi alteram partem as well as Article 10-A of the Constitution of Islamic Republic of Pakistan. Learned counsel further submits that the petitioner had already arranged pay orders for the balance amount, which reflected his financial readiness and willingness, but this aspect remained wholly unexamined by both Courts below.

4. Learned counsel for the respondent, on the other hand, supports the impugned orders and submits that the petitioner persistently remained in default despite repeated opportunities. He argues that readiness and willingness constitute essential requirements under Section 16(c) of the Specific Relief Act, 1877, and the petitioner's prolonged failure to deposit such a substantial amount disentitled him from equitable relief.

5. Arguments heard. Record perused.

6. The principal question falling for consideration in the present case pertains to the procedural nature and legal complexion of the proceedings conducted on 15.09.2025. The record unmistakably reflects

that vide order dated 04.09.2025, the learned Trial Court had referred the matter to mediation under Order IX-A of the Code. The proceedings on 15.09.2025 were, therefore, primarily confined to mediation and not fixed for disposal of the suit or final determination of default regarding deposit. Although the opening recital of the impugned order suggests that the case was fixed for deposit and summoning of defendant, such recital is inconsistent with both the stage of the proceedings and the substance of the order itself, particularly when the defendant had already appeared and filed written statement. The contemporaneous order sheet thus carries greater evidentiary value and clearly indicates that the matter had been fixed for mediation.

7. It is a settled principle of procedural fairness that a Court must ordinarily confine itself to the purpose for which a matter is fixed. A litigant is entitled to proceed on the legitimate expectation that proceedings fixed for mediation shall not suddenly culminate in dismissal of the suit without prior notice or opportunity. Once the learned Trial Court had consciously shifted the proceedings into a conciliatory framework, it was incumbent upon it, upon failure of mediation, to restore the matter to its ordinary adversarial track and afford the petitioner a clear opportunity regarding compliance before resorting to the extreme consequence of dismissal. The abrupt transition from failed mediation to dismissal of the suit was thus procedurally irregular and legally unsustainable. Reliance is placed upon Hashim Khan v. National Bank of Pakistan (1992 SCMR 707), Qazi Muhammad Tariq v. Hasin Jahan and 3 others (1993 SCMR 1949), Altaf Hussain Qamar and 2 others v. Imran Rasool and 5 others (2011 CLC 1891) and Khurram Manzoor and another v. Suriya Begum (Late) through her legal heirs and others (PLD 2022 Islamabad 68).

8. The institution of mediation under Order IX-A of the Code is founded upon the modern jurisprudential shift from adversarial adjudication toward consensual dispute resolution. Once a Court consciously invokes the machinery of Alternative Dispute Resolution, the character of proceedings undergoes a temporary but legally significant transformation from adjudicatory determination to facilitated

settlement dialogue. During such phase, parties legitimately regulate their participation and preparation according to the limited object for which the matter stands fixed. It would therefore be fundamentally inconsistent with the philosophy underlying mediation if proceedings fixed for consensual settlement were unexpectedly converted into punitive adjudicatory action culminating in dismissal of substantive rights. Such an approach not only defeats the legitimate expectations of litigants but also risks undermining public confidence in Court-annexed mediation as a fair and facilitative process.

9. The impugned order further suffers from violation of the principle of *audi alteram partem*, which constitutes a foundational requirement of fair trial and due process under Article 10-A of the Constitution. The order dated 15.09.2025 does not reflect that the petitioner was called upon to explain his default or afforded any final opportunity before dismissal of the suit. Dismissal of a civil suit involving valuable immovable property rights is a drastic consequence and could not have been imposed without affording a meaningful hearing.

10. Procedural law is designed to advance the cause of justice and not to furnish technical instruments for foreclosure of substantive rights without fair opportunity. Although Courts possess authority to enforce procedural discipline and ensure compliance with lawful directions, such powers must be exercised in a manner proportionate to the nature of the default and consistent with the overarching obligation to secure fair adjudication. Particularly in suits involving proprietary rights in immovable property, dismissal at a pre-trial stage without clear notice, meaningful opportunity, and procedural transparency constitutes an extreme judicial consequence that must remain a measure of last resort rather than one of first recourse.

11. While non-deposit of balance consideration is undoubtedly a relevant circumstance in assessing readiness and willingness under Section 16(c) of the Specific Relief Act, 1877, such default is not by itself conclusively determinative at the interlocutory stage. The question of readiness and willingness remains a matter to be examined in the

totality of evidence. In the present case, the petitioner's assertion that pay orders had already been prepared for the balance amount, if substantiated, prima facie reflects financial readiness. This aspect was neither adverted to by the learned Trial Court nor meaningfully examined by the learned Appellate Court. Reliance is placed upon Maksud Ali and Others v. Eskandar Ali (PLD 1964 Supreme Court 381) and Muhammad Jahan Zaib Khan v. Muhammad Rafique Khan and 2 others [2021 PLC (C.S.) 1435].

12. The judgment of the learned Appellate Court is independently unsustainable. The principal ground urged before it was that the suit had been dismissed on a date fixed for mediation and without notice or opportunity. The impugned appellate judgment, however, does not address this central procedural objection and instead proceeds on generalized observations regarding non-compliance and appellate restraint in discretionary matters. Such omission amounts to failure to exercise jurisdiction vested in the appellate Court by law. Reference is made to Pakistan Refinery Ltd., Karachi v. Barrett Hodgson Pakistan (Pvt.) Ltd. and others (2019 SCMR 1726).

13. At the same time, the conduct of the petitioner cannot be ignored altogether. The petitioner remained in default for a considerable period despite repeated opportunities and the outstanding amount involved is substantial. Such conduct certainly reflects negligence and lack of diligence. However, this aspect pertains to the conditions upon which restoration may be granted and does not cure the underlying procedural illegality attending dismissal of the suit.

14. The equitable jurisdiction exercised in suits for specific performance undoubtedly requires a plaintiff to demonstrate continuous readiness and willingness; however, the judicial assessment of such readiness cannot be reduced to a single procedural default viewed in isolation from the surrounding circumstances of the case. Equity operates upon substance rather than technicality. A distinction must therefore be maintained between contumacious disregard of judicial authority on the one hand and procedural lapse occurring during transitional stages of litigation on the other. Courts administering

equitable remedies must remain vigilant that procedural enforcement does not itself become disproportionate to the object sought to be achieved.

15. Judicial orders derive their legitimacy not merely from the authority of the forum passing them but from demonstrable adherence to fairness, transparency, and procedural consistency. Where the procedural trajectory adopted by the Court itself creates a reasonable impression that the matter stands diverted toward settlement proceedings, the parties cannot subsequently be non-suited through abrupt adjudicatory consequences without restoration of regular proceedings and clear notice. The rule of law requires not only that justice be done but that judicial process itself remain predictable, orderly, and procedurally fair.

16. The scope of revisional jurisdiction under Section 115 of the Code is supervisory and corrective rather than appellate. Such jurisdiction is attracted where a subordinate Court has exercised jurisdiction not vested in it by law, failed to exercise jurisdiction so vested, or acted in the exercise of its jurisdiction illegally or with material irregularity. The present case squarely falls within the latter category. Revisional interference becomes warranted where the Court below disregards mandatory procedural safeguards, violates settled principles of natural justice, or fails to adjudicate the real controversy raised before it. While exercising such jurisdiction, this Court does not reappraise evidence as an appellate forum; rather, it scrutinizes the legality, propriety and procedural regularity of the exercise of jurisdiction by the Courts below. Reference is made to Mst. Banori v. Jilani through Legal Heirs and others (PLD 2010 Supreme Court 1186), Mandi Hassan alias Mehdi Hussain and another v. Muhammad Arif (PLD 2015 Supreme Court 137) and Muhammad Yousuf Bhindi and others v. Messrs A.G.E. & Sons (Pvt.) Ltd. and others (PLD 2024 Supreme Court 864).

17. In view of the foregoing discussion, this Court is satisfied that the impugned order dated 15.09.2025 passed by the learned Trial Court, as well as the judgment dated 19.12.2025 rendered by the learned

Appellate Court, suffer from material procedural irregularity and cannot be sustained in the eye of law.

18. For the foregoing reasons, this Civil Revision is **allowed**. The order dated 15.09.2025 passed by the learned Civil Judge, Wazirabad, and the judgment dated 19.12.2025 passed by the learned Additional District Judge, Wazirabad, are **set aside**. Consequently, the petitioner's suit is restored to the file of the learned Trial Court subject to the condition that the petitioner shall, within a period of fifteen (15) days, deposit the court fee and remaining sale consideration, failing which the restoration shall automatically lapse and the suit shall stand dismissed. Upon such compliance, the learned Trial Court shall proceed expeditiously, frame issues under Order XIV CPC, and decide the matter preferably within **one year**, strictly in accordance with law and evidence, without being influenced by any observation contained in this judgment. A compliance report shall be furnished to this Court through the learned Deputy Registrar (Judicial).

(Muhammad Sajid Mehmood Sethi)  
Judge

**APPROVED FOR REPORTING**

Judge

\*A.H.S.\*